IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 5

CP(CAA) No. 14/Chd/Pb/2024
(2nd Motion)

IN THE MATTER OF:

AKM Real Estate Developers Pvt. Ltd. …Transferor Company

And

Digvijay Chemicals Limited …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 04.10.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Applicant: Mr. Rahul Jogi, Advocate
Ms. Deepali Garg, PCS
For the RoC: Mr. Vineet Khattri, Company Prosecutor
For Transferor Company No.1: Mr. Yogesh Putney, Senior Standing Counsel
For Transferee Company Nos.2 and 3: Mrs. Urvashi Dhugga, Senior Standing Counsel
For the OL: Mr. Edward Augustine George, Advocate

ORDER

In pursuance of last order, compliance affidavit has been filed vide Diary No. 01045/14 dated 15.07.2024. The same is taken on record. It is noted that the Transferee Company is also proposing reduction of share capital. Ld. Counsel for the petitioner companies explained that the reduction has been proposed in respect of those shareholders, who in the year 2012, at the time of delisting of shares in Delhi Stock Exchange had not sold their shares at that time. It was also explained that addresses of some of shareholders are not known/correct and in the event, the amount

could not be deposited the same shall be credited to IEPF. The percentage of shareholding of these shareholders is about 6% of the share capital of transferee company. Ld. Counsel for the petitioner is directed to file relevant judgments on the point of reduction of the share capital of the transferee company within three days.

Although it was not directed by this Tribunal order, the petitioner companies issued notice to the Excise Department back away in April 2023 but no response has been filed and a compliance affidavit to that effect has been filed vide Diary No. 01045/1 dated 05.06.2023. Since there is no representation on behalf of Excise Department. Let the notice be issued to Excise Department of the respective State in which distilliary is situated with the direction to file its report and to be present on the next date of hearing either physically or through VC failing which it is presumed that there is no adverse comments on the scheme. The counsel of petitioner companies submitted that they do not hold any licence from FSSAI and there is no need to issue to FSSAI. Ld. Counsel was directed to file an affidavit in this regard. Let the same be filed within one week. List on 18.10.2024 in the supplementary list.

Sd/-

(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-

(HARNAM SINGH THAKUR)
MEMBER (J)

Preeti